

22STCV09882 22STCV09882

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 22STCV09882 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFFS' MOTION TO STRIKE OR TAX DEFENDANT STATE FARM GENERAL INSURANCE COMPANY'S MEMORANDUM OF COSTS Dept. 731 8:30 a.m. July 14, 2026

Moving Party: Plaintiffs, Gevork Tashchyan and Aida Tashchyan

Opposing Party: Defendant, State Farm General Insurance Company

Notice: OK

1. Background Facts

Plaintiffs Gevork Tashchyan and Aida Tashchyan ("Plaintiffs") brought this suit alleging claims of breach of contract and breach of the covenant of good faith and fair dealing against Defendant State Farm General Insurance Company ("Defendant") on the grounds that, despite insuring Plaintiffs, Defendant failed to cover a claim for burglarized items wrongfully taken from Plaintiff's home.

A jury verdict was issued on January 30, 2026, with judgment entered on February 27, 2026, finding for Plaintiffs in the amount of \$97,486.63 for Defendant's breach of contract but finding for Defendant on the count of breach of the covenant of good faith and fair dealing.

Plaintiffs served a notice of judgment on March 4, 2026, via electronic service, with Defendant filing a memorandum of costs on March 13, 2026, and Plaintiffs filing a memorandum of costs on March 18, 2026.

On April 6, 2026, Plaintiffs filed a motion to strike or tax costs in Defendant's March 13, 2026, memorandum of costs. Defendant filed a June 30, 2026, opposition, and Plaintiffs filed a July 7, 2026, reply. (Defendant separately challenged Plaintiffs' memorandum of costs by way of a motion to strike or tax costs, which the Court denied as untimely on June 9, 2026, without prejudice.)

Plaintiffs' motion is now before the Court.

2. Motion to Strike or Tax Costs

After review, the Court GRANTS Plaintiffs' motion, as Defendant is not entitled to cost either pursuant to Code of Civil Procedure section 1032 or Code of Civil Procedure section 998.

In general, the "prevailing party" is entitled as a matter of right to recover costs for suit in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1108.) Here, judgment vis-à-vis the first cause of action for breach of contract was entered in favor of Plaintiff in the amount of \$97,486.63, for which reason Defendant cannot be a prevailing party pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines a prevailing party as (1) the party with a net monetary recovery, (2) a defendant who is dismissed from the action, (3) a defendant where neither plaintiff nor defendant recovers anything, and (4) a defendant as against those plaintiffs who do not recover any relief against that defendant. (See *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105 [If the party does not fall within one of these four express categories, the court may exercise its discretion to award or deny costs].)

The Court also finds insufficient merit to costs based on Code of Civil Procedure section 998 offers made by Defendant during the litigation of this action. (See Opposition, pp. 4-6 [§ 998 offers of \$115,000.00 and \$300,000.00].) As pointed out in Plaintiffs' reply, Plaintiffs' collective judgment and pre-offer costs—\$97,486.63 in judgment, \$34,686.13 in pre-offer costs, for a total of \$132,172.76—exceeds the first offer of \$115,000.00. (Reply, p. 3 & Reply, Townsend Decl., ¶ 7; see *Hersey v. Vopava* (2019) 38 Cal.App.5th 792, 798-799 [more favorable judgment calculated from adding judgment and pre-offer

costs].) Separately, our Supreme Court has held that where multiple 998 offers are made, California courts need not apply a doctrine by which the last 998 offer extinguishes a preceding offer for purposes of 998 analysis. (See *Martinez v. Brownco Construction Co.* (2013) 56 Cal.App.4th 1014, 1021-1024.)

Plaintiffs' motion is thus GRANTED.

The Court STRIKES Defendant's memorandum of costs.

Plaintiffs are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 14, 2026 _____

MARK C. KIM

Judge of the Superior Court